

SOFTWARE SERVICES AGREEMENT - VERSION B

This Software Services Agreement ("Agreement") is entered into as of January 1, 2024, by and between Acme Corp, a Delaware corporation ("Provider"), and Beta LLC, a California limited liability company ("Customer").

1. Services

Provider agrees to deliver software development and maintenance services as described in each Statement of Work ("SOW") mutually executed by the parties. Provider shall assign a dedicated project manager to each SOW and will commence work within five (5) business days of execution. Provider will use commercially reasonable efforts to meet all deadlines set forth in each SOW.

2. Payment Terms

Customer shall pay all invoices within fifteen (15) days of the invoice date. All fees are denominated and payable in Euros (EUR) at the exchange rate on the invoice date. Late payments shall accrue interest at a rate of three and a half percent (3.5%) per month on the outstanding balance. Provider reserves the right to suspend services after thirty (30) days of non-payment.

3. Limitation of Liability

Provider's total cumulative liability arising out of or related to this Agreement shall not exceed Five Hundred Thousand United States Dollars (USD \$500,000), regardless of the cause of action or the theory of liability. This limitation shall not apply to damages arising from Provider's gross negligence, fraud, or wilful misconduct.

4. Term and Renewal

This Agreement shall commence on the Effective Date and continue for a period of one (1) year ("Initial Term"). This Agreement shall NOT automatically renew upon expiration. To extend the Agreement, the parties must execute a written renewal at least ninety (90) days prior to the end of the then-current term. Failure to execute a renewal will result in expiration of this Agreement.

5. Termination for Convenience

Either party may terminate this Agreement for any reason upon ninety (90) days prior written notice to the other party. If Customer terminates for convenience prior to the end of the Initial Term, Customer shall pay Provider an early termination fee equal to three (3) months of the average monthly fees paid in the six months preceding termination. Provider will deliver all work product completed as of the termination date.

6. Intellectual Property

All work product, inventions, and deliverables created by Provider under this Agreement shall be considered works made for hire and shall be the sole and exclusive property of Customer. Provider retains ownership of all pre-existing tools, frameworks, and methodologies used in delivering the services.

7. Confidentiality

Each party agrees to hold the other party's Confidential Information in strict confidence and not to disclose such information to any third party without prior written consent. This obligation shall survive the termination of this Agreement for a period of three (3) years.

8. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of law provisions. Any disputes arising under this Agreement shall be resolved exclusively in the state or federal courts located in New York City, New York. Each party irrevocably consents to the personal jurisdiction of such courts.

9. Indemnification

Provider shall indemnify, defend, and hold harmless Customer and its officers, directors, and employees from any third-party claims, damages, and expenses (including reasonable attorneys fees) arising out of: (a) Provider's gross negligence or wilful misconduct; (b) any claim that the deliverables infringe a third party's intellectual property rights; or (c) Provider's breach of its data protection obligations. Customer's indemnification obligations are limited to claims arising solely from Customer's misuse of the deliverables.

10. Entire Agreement

This Agreement, together with all SOWs and exhibits, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements, representations, and understandings. This Agreement may not be amended except by a written instrument signed by authorized representatives of both parties.